These are the notes referred to on the following official copy

Title Number 139884

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139884

Stamp 5/-

Original 10/-

Adjudication Stamp

T H I S A G R E E M E N T is made the Fourteenth day of June One thousand nine hundred and thirty-seven B E T W E E N THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND (hereinafter called "the Bank") of the first part THE MAYOR ALDERMEN AND BURGESSES OF THE BOROUGH OF BARNES (hereinafter called "the Corporation") of the second part and THE COUNTY COUNCIL OF THE ADMINISTRATIVE COUNTY OF SURREY (hereinafter called "the Council") by Dudley Aukland their Clerk and Agent of the third part

WHEREAS it is desirable that the Beverley and Pyl Brooks in the County of Surrey and the drainage conditions in the Catchment Area thereof should be improved

AND WHEREAS on the Thirtieth day of September One thousand nine hundred and thirty-three representatives of the Council and of Local Authorities in Surrey affected by the proposed improvement inspected the said Beverley Brook and recommended a scheme of improvement to the Council and the said Local Authorities

AND WHEREAS the Council and the said Local Authorities approved the scheme which includes (inter alia) the widening straightening and improvement of the said Beverley Brook near to and adjoining the Bank's Sports Ground and property known as Palewell Fields belonging to the Corporation at Roehampton the title of the Bank being registered under Title Number 139884

AND WHEREAS pursuant to the powers vested in them by the Surrey County Council Act 1925 the Council desire that the Bank shall grant to them the rights or privileges hereinafter specified

AND WHEREAS the Corporation have agreed to join in these presents for the purpose and in the manner hereinafter appearing

NOW IT IS HEREBY AGREED as follows:-

1. IN consideration of the works hereinafter specified carried out or to be carried out by and the covenant on the part of the Council hereinafter contained the Bank hereby grants unto the Council the right or privilege of bringing on to such part or

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parts of the said Sports Ground as the Council may require the requisite workmen vehicles and machinery and to use and operate the said vehicles and machinery thereon for the purpose of carrying out at their own expense and to the reasonable satisfaction of the Bank's Consulting Engineer the following works or such of the same as have not been already carried out viz:-

(a) To fill in the existing Beverley Brook between the points C-A-B shown on the plan marked with the letter "A" annexed hereto and when such filling in shall in the opinion of the Bank's Consulting Engineer have consolidated sufficiently to erect between the said points C-A-B on the Bank's property on or within the boundary line shown on the plan marked with the letter "B" annexed hereto and thereon marked "Borough Boundary" an unclimable fence of a pattern to be approved by the Bank's Consulting Engineer Provided that the difference between (a) the cost of erecting such unclimbable fence and (b) the cost of removal of the Bank's existing fence added to the amount of the cost of re-erecting such last mentioned fence on the said boundary line if such erection had been carried out shall be borne by the Bank

(b) To extend the existing nine inch drain from the point marked A on the said plan marked A to the point marked B on such plan

(c) To remove the existing brick bridge and erect a new reinforced concrete bridge (the plans of which have already been approved by the Bank) and to connect the footpath at present leading up to the existing bridge to such new bridge with a gate on the West side Provided that the existing bridge shall not be removed until such new bridge has been constructed and opened for use.

2. THE Council hereby covenant with the Bank that the Council will carry out the said works in such manner as to cause as little annoyance or disturbance as possible to the Bank's

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adjoining property and will make good with as little delay as possible any damage which may have been caused to the said adjoining property of the Bank by reason of the said works or any of them.

3. THE Bank will after such new bridge has been constructed accept full responsibility for the repair and maintenance thereof.

4. IT IS HEREBY AGREED between the Corporation and the Bank

(a) that the boundary of the land belonging to the Corporation on the one hand and the Bank's property on the other hand shall be the boundary line shown on the plan marked with the letter "B" annexed hereto and thereon marked "Borough Boundary"

(b) that in the event of any diversion of the footpath leading up to the said new bridge becoming necessary at any time the Corporation will at their own cost continue the connection thereto from the said new bridge.

5. THE Bank will forthwith apply to the Registrar to make the requisite amendments in Title Number 139884 before referred to in order to give effect to Clause 4(a) hereof to which amendments the Corporation hereby consent

6. A MEMORANDUM of this Agreement shall be endorsed on the last of the deeds constituting the title of the Corporation to the property belonging to them.

IN WITNESS whereof the Bank and the Corporation have caused their respective Common Seals to be hereunto affixed and the said Dudley Aukland has hereunto set his hand the day and year first above written

THE COMMON SEAL OF THE MAYOR)
ALDERMEN AND BURGESSES OF)
THE BOROUGH OF BARNES was) SEAL
hereunto affixed in the)
presence of:)

H. HEDDERLEY
MAYOR

ARTHUR C.FOX
TOWN CLERK

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SIGNED BY the said DUDLEY)
AUKLAND in the presence)
of:-)

DUDLEY AUKLAND

G.A.HOWARD
County Hall
Kingston-upon-Thames
Local Government Officer

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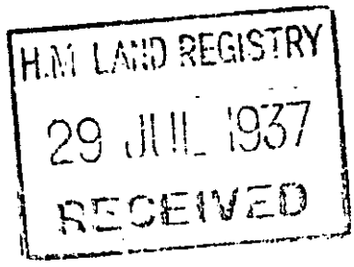
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DATED 14th June 1937

THE GOVERNOR AND COMPANY OF
THE BANK OF ENGLAND
and Another

- and -

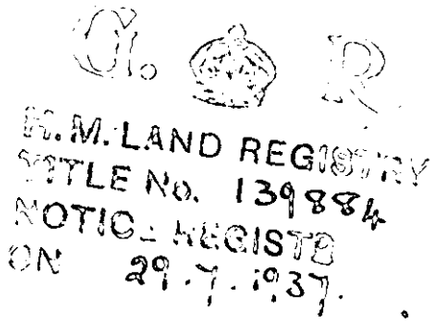
THE SURREY COUNTY COUNCIL



Copy/

A G R E E M E N T

We certify this to be a true copy
Freshfields Leese Munns
31 Old Jewry EC2
29th July 1937

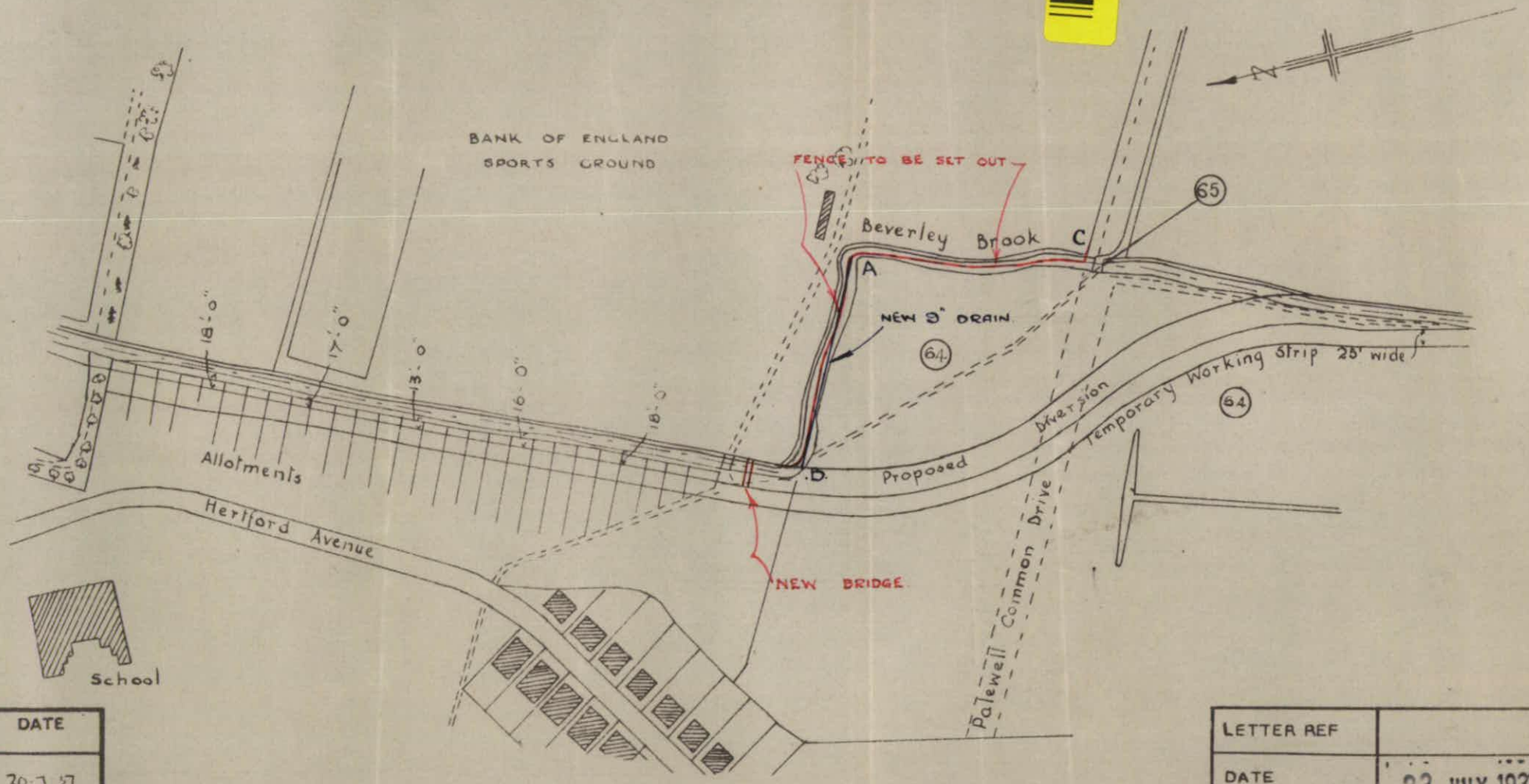


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SURREY COUNTY COUNCIL

BEVERLEY & PYL BROOKS IMPROVEMENTS SCHEME

PLAN



MADE BY	INITIALS	DATE
TRACED BY	F.F.H	20-7-37
COMPLETED BY		
EXAMINED BY		

SCALE 1/2500

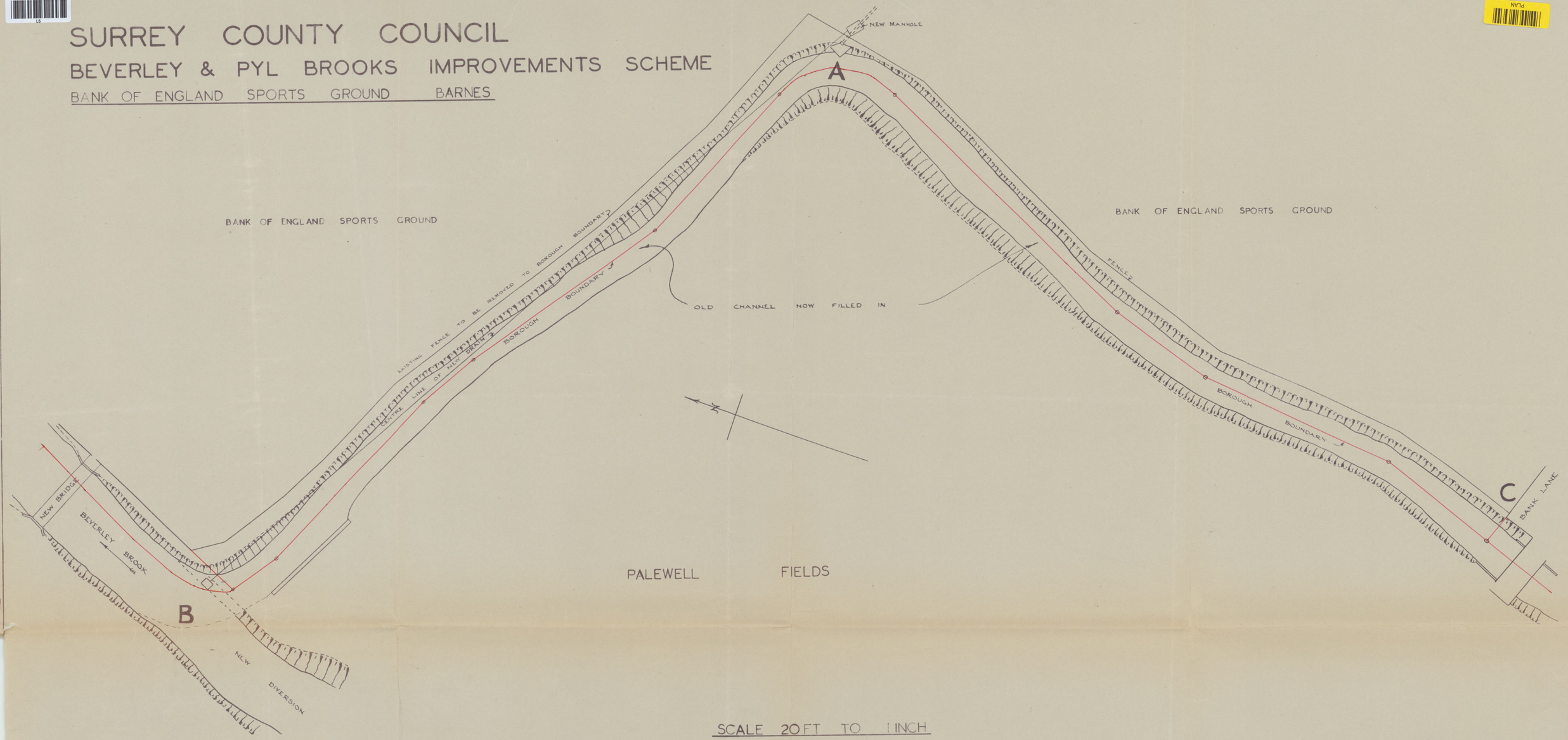
LETTER REF	
DATE	23 JULY 1937
REG. No.	C 1015
FILE No.	5246

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SURREY COUNTY COUNCIL

BEVERLEY & PYL BROOKS IMPROVEMENTS SCHEME

BANK OF ENGLAND SPORTS GROUND BARNES



SCALE 20 FT TO 1 INCH

SURREY COUNTY COUNCIL
HIGHWAYS AND BRIDGES DEPARTMENT
LETTER REF.
DATE 23 JULY 1937
REG. No. C4/18
FILE No. 5246

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